

SYNTHETIC TRAINING RECORD — NOT FILED — ALL NAMES AND FACTS ARE
FICTIONAL

UNITED STATES DISTRICT COURT EASTERN DISTRICT OF VIRGINIA RICHMOND
DIVISION

ASTERGLEN FREIGHT SOFTWARE, INC., Plaintiff,

v.

Civil Action No. SYN-25-0117

COPPER KESTREL LOGISTICS, LLC, and MERIDIAN SILT HOLDINGS, LLC, Defendants.

MEMORANDUM ORDER ON PARTIAL SUMMARY JUDGMENT

Copper Kestrel moves for summary judgment on Asterglen's contract claim, Count I. The motion is granted. This order does not resolve Count II against Meridian Silt or Copper Kestrel's counterclaim.

Undisputed record for this motion

The April 15, 2024 Pilot License permitted twelve named terminals. Section 9.2 required a party, before terminating for material breach or seeking breach damages, to provide written notice describing the breach and fifteen calendar days to cure. The parties agree Asterglen's July 22 email simultaneously announced termination and demanded \$480,000; it allowed no cure period.

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The parties dispute whether Asterglen's project manager orally allowed expanded testing on July 8. That dispute does not alter the present ruling because Section 9.2 applies even if the expanded deployment was otherwise a material breach.

Asterglen argues notice would have been futile because Copper Kestrel denied wrongdoing. The record instead shows Copper Kestrel said on July 22 that it could reduce active identifiers if Asterglen required it. No admissible evidence establishes refusal to cure before termination.

Analysis

Summary judgment is appropriate when no genuine dispute of material fact remains and the movant is entitled to judgment as a matter of law. The Court applies that standard only to Count I.

Section 9.2 uses mandatory language: before either party terminates for material breach "or seeks breach damages," it "must" give written notice and fifteen calendar days to cure. In the context of the agreement as a whole, notice and an opportunity to cure are conditions precedent to the contract remedy Asterglen seeks.

Asterglen's July 22 email described the asserted expanded deployment, but it made termination immediate and demanded damages immediately. It did not allow the promised cure period.

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Asterglen relies on the July 8 discussion and July 18 audit. Neither was written notice that triggered a fifteen-day cure period. The discussion preceded the audit, and the audit was not sent to Copper Kestrel before July 22.

The Court rejects Asterglen's futility argument on this record. The agreement states no futility exception, and the cited communications do not show that notice and cure were impossible.

Because Asterglen did not satisfy the agreed condition precedent, Copper Kestrel is entitled to judgment on Count I. The Court does not decide whether the forty-one identifiers constituted production use, whether the July 8 statement effected a waiver, or whether the claimed amount is otherwise recoverable.

Remaining matters

Count II alleges Meridian Silt intentionally induced unauthorized expansion. It remains pending. Copper Kestrel's counterclaim alleges Asterglen violated the same notice-and-cure provision by disabling service. It also remains pending.

The parties identify overlap in witnesses, the July 8 discussion, deployment logs, the July 22 email, cure feasibility, causation, and damages or offset. Nothing in this merits order decides whether immediate entry under Rule 54(b) would be proper.

Order

For the reasons stated:

1. Copper Kestrel's motion for summary judgment on Count I is GRANTED.
2. Count I is DISMISSED WITH PREJUDICE as to Copper Kestrel.
3. Count II against Meridian Silt and Copper Kestrel's counterclaim remain for adjudication.
4. No judgment is directed at this time. Any request under Federal Rule of Civil Procedure 54(b) must be made separately and address claim finality, the relationship between resolved and unresolved matters, possible mootness, repeat review, setoff, and relevant equities.

Entered: January 12, 2026.

/s/ District Jurist Solace

DISTRICT JURIST SOLACE (fictional composite) United States District Court, exercise designation only

Exercise notice

This authored order is not a judicial decision. "District Jurist Solace" is a fictional composite label, not a real person. The order supplies a fully disposed Count I and expressly preserves Count II and a counterclaim so the later Rule 54(b) jurisdiction question is concrete.

The order itself does not direct judgment. The subsequent motion, response, short order, and separate partial judgment are distinct docket entries.